

BEFORE THE COLORADO ADDICTION COUNSELOR PROGRAM AND
THE COLORADO BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No.: 2009-002811 & 2009-002783

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE
CERTIFICATE TO PRACTICE ADDICTION COUNSELING AND LICENSE TO
PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF
YUMIL JIMENEZ, CERTIFICATE NO.: CAC III-6613 & LICENSE NO.: LPC-4846,

Respondent.

IT IS HEREBY STIPULATED by and between the Director of the Colorado
Addiction Counselor Program ("Program") and the Colorado Board of Licensed Professional
Counselor Examiners ("Board") and Yumil Jimenez, ("Respondent") as follows:

1. Respondent was certified to practice as an Addiction Counselor in the State of Colorado on January 10, 2008, having been issued license number CAC III-6613, and is currently so certified.
2. Respondent was licensed to practice as a Professional Counselor in the State of Colorado on December 11, 2007, having been issued license number LPC 4846, and is currently so licensed.
3. The Board, the Program, and the Director have jurisdiction over Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
4. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out the complaints arising in case number 2009-002811 & case number 2009-002783 without the necessity of holding a formal hearing. This Order is a full and final resolution of case numbers 2009-002811 and 2009-002783. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
5. Respondent admits the following:

- a. In or around November 2008, Respondent violated DVOMB standards by allowing her daughter, who is not certified or listed in the database and not approved to provide DV treatment, to independently conduct DV groups.
- b. In or around November 2008, Respondent maintained a dual relationship by serving as her daughter's supervisor.
- c. In or around November, 2008, Respondent began charging clients three dollars (\$3.00) for them to charge for services.

...

12-43-222. Prohibited activities - related provisions.

(1) A person licensed, registered, certified, or regulated under part 3, 4, 5, 6, 7, or 8 of this article is in violation of this article if such person:

...

(g) Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which such person practices. A certified copy of a malpractice judgment of a court of competent jurisdiction shall be conclusive evidence of such act or omission, but evidence of such act or omission shall not be limited to a malpractice judgment.

...

(j) Has exercised undue influence on the client, including the promotion of the sale of services, goods, property, or drugs in such a manner as to exploit the client for the financial gain of the practitioner or a third party;

...

(n) Has failed to render adequate professional supervision of persons practicing pursuant to this article under such person's supervision according to generally accepted standards of practice;

- 6. By virtue of the facts admitted in paragraph 5 above, Respondent admits and the Director finds that the above conduct is a violation of §12-43-222(1)(g) (j) & (n), C.R.S.

PROBATION

7. Respondent's certification to practice as an Addictions Counselor in the State of Colorado, and Respondent's license to practice as a Professional Counselor in the State of Colorado, are hereby placed on probation for a period of two (2) years, beginning on the effective date of this Stipulation and Order. During the probationary period, Respondent shall be bound by the terms and restrictions set forth in this Order.
8. The period of probation is tolled during any time that Respondent is not practicing certified Addiction Counseling or Professional Counseling in the State of Colorado. The period of probation shall resume at such time as Respondent resumes practicing certified Addiction Counseling and/or Professional Counseling in the State of Colorado in accordance with this Order.
9. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing as a certified Addiction Counselor or as a Licensed Professional Counselor in Colorado and is in full compliance with all terms of this Order.
10. If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of probation. Request for termination of probation must be made in writing to the Board, and Respondent is responsible for establishing, to the satisfaction of the Board, that he has satisfied all terms and conditions of probation.

PRACTICE MONITOR

11. During the term of probation, Respondent's practice shall be monitored by a practice monitor. Respondent shall submit, in writing, three proposed practice monitors for the Director's approval. Respondent shall include a program-approved practice monitor application from each potential monitor, with attached curriculum vita or resume. The practice monitor shall meet the following criteria:
 - a. The practice monitor shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado; and
 - b. It is recommended that the practice monitor have a minimum of five years of experience and has not been subject to professional discipline; and
 - c. The practice monitor shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.
12. Respondent must have a practice monitor approved by the Director within two months after this Order is fully executed. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of her practice until a practice monitor is approved.

13. After the Director's written approval of a practice monitor, Respondent and the approved practice monitor shall enter into a written contract for monitoring. The practice monitor shall provide a copy of the written contract to the Director as a part of his/her first report to the Director. The contract must contain a provision stating that the practice monitor has received a copy of this Order, the application and responsive documents, any investigative report, and any prior practice evaluation(s); has read these documents; and understands the duties and responsibilities s/he is undertaking as Respondent's practice monitor. The practice monitor shall ensure that a written notification is provided to each of Respondent's clients, informing the clients of the name, address, and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.
14. The practice monitor shall conduct a practice evaluation during the first month of practice monitoring. The practice evaluation shall examine all aspects of Respondent's practice or proposed practice, her qualifications and ability to practice in accordance with generally accepted standards of practice and with skill and safety for clients, and determine whether she has the necessary qualifications, current ability, and competence to practice. The first practice monitoring report shall include the findings of the practice evaluation.
15. Should the Director determine from the practice monitor's evaluation that Respondent cannot practice any part of her practice with skill and safety for clients in accordance with generally accepted standards of practice and/or does not have the appropriate qualifications, ability or competence for practice, Respondent shall immediately cease any part of the practice that the Director determines, based on the evaluation, she is not qualified, competent, and/or safe to conduct. Based on the Director's findings and the evaluation, the Director will determine necessary actions that Respondent must take and conditions Respondent must meet so that Respondent can practice with skill and safety for clients in accordance with generally accepted standards of practice in any areas the Director finds Respondent is not qualified, competent, and/or safe to practice. Once Respondent satisfies the Director that she is qualified, competent, and/or safe to fully practice, Respondent may resume full practice.
16. The practice monitoring shall consist of individual, in-person (face-to-face) sessions that occur for one hour, or such longer time as the practice monitor deems necessary, for every 20 hours of client contact, but at least twice a month. During the practice monitoring sessions, Respondent and her practice monitor must review and discuss each of Respondent's active cases at least once every month in order to allow the practice monitor to be able to determine whether Respondent is practicing Addiction Counseling and Professional Counseling in accordance with generally accepted standards of practice and with skill and safety for her clients.
17. The practice monitor shall submit written reports to the Director on the fifth day of the month following the first full month of practice monitoring. All subsequent reports shall be submitted on the fifth day of each month for the first 12 reports. After the

submission of the first 12 reports, unless otherwise ordered by the Director, the practice monitor shall submit his/her reports by the fifth day of every third month (i.e., on a quarterly basis) until the practice monitoring is completed.

18. If at any time the Director has questions or concerns regarding the monitoring, the practice monitor agrees to attend any Director meeting necessary to address the Director's concerns. The Director will give the practice monitor 30 days notice prior to requiring the practice monitor's attendance at the Director meeting.
19. If at any time the practice monitor believes Respondent is not in compliance with this Order, is unable to practice with skill and safety to her clients, and/or has committed a violation of the practice act or rules and regulations, the practice monitor shall immediately notify the Director, in writing, and include the basis for this conclusion.
20. A copy will be sent to Respondent. Upon submission of such a report, Respondent shall immediately cease the practice of Addiction Counseling and Professional Counseling.
21. Respondent shall make every effort to ensure that all reports by the practice monitor are complete and timely submitted to the Director. If, in the Director's judgment, the practice monitor fails to perform the function specified by this Order, the Director may require that a new practice monitor assume the responsibilities herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Respondent shall submit, in writing, a new proposed practice monitor to the Director within 30 days.
22. Respondent or the practice monitor may terminate the monitoring relationship upon written notice to the other and to the Director not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another Director-approved practice monitor, who shall conduct his monitoring and report to the Director in accordance with this Order.

CONTINUING EDUCATION

23. During the period of probation, Respondent must successfully complete at least twenty (20) hours each year of Board-approved professional continuing education courses in the areas of dual relationships and legal/ethical issues. Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, the provider is to mail to the Board a certificate of completion.

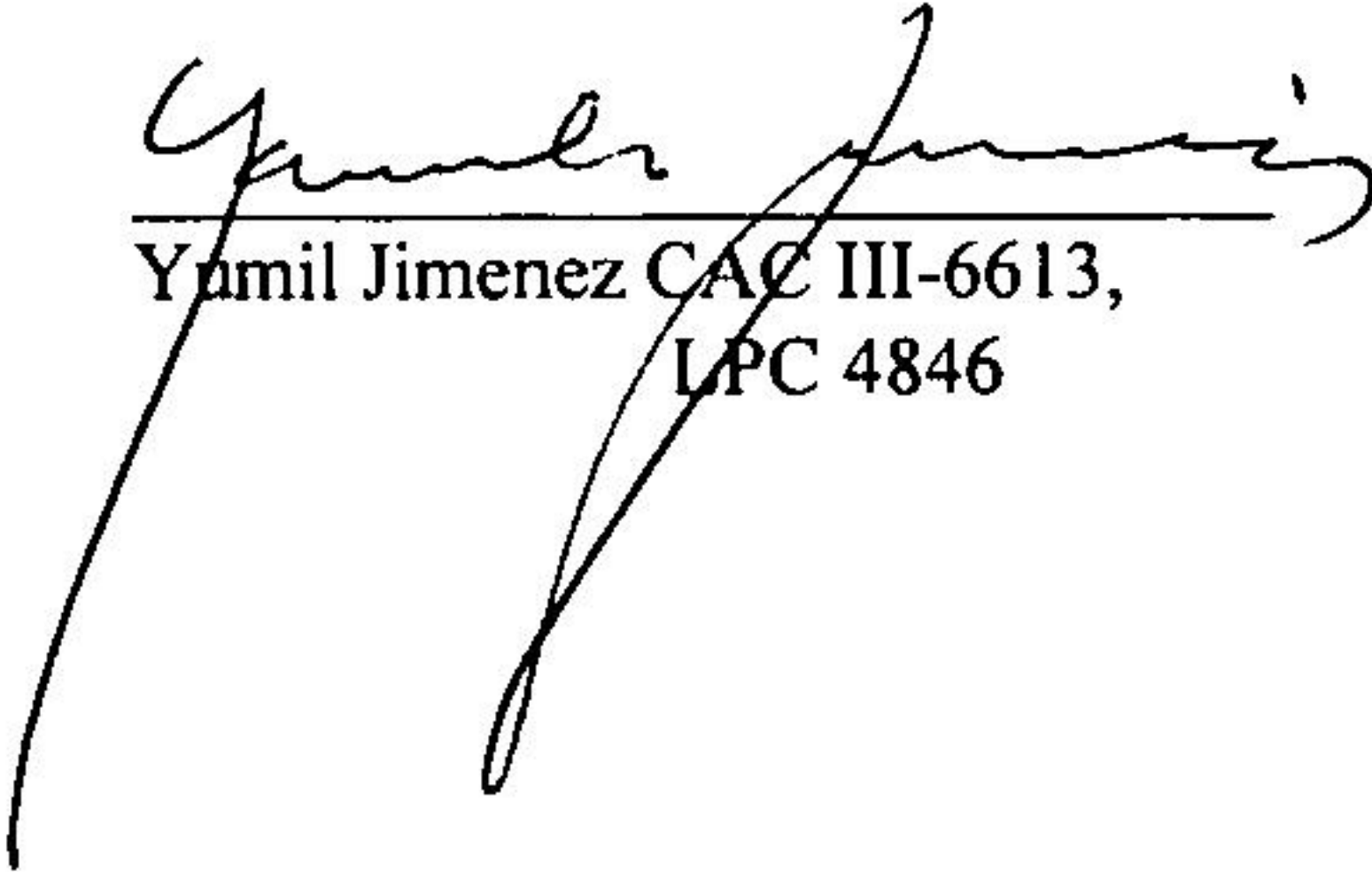
TERMS AND CONDITIONS

24. Respondent will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.
25. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing Addiction Counseling or Professional Counseling, unless such supervision or consultation is monitored in accordance with this Order.
26. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.
27. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §§12-43-212 and 24-4-104(9), C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.
28. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.
29. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal hearing pursuant to §§12-43-212, 12-43-224, and 24-4-104(9), C.R.S.
30. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.
31. Respondent shall obey all state and federal laws while this Order is in effect.
32. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.
33. This Order shall become effective when accepted and signed on behalf of the Board.

34. This Order shall be admissible as evidence at any hearing held before the Board.

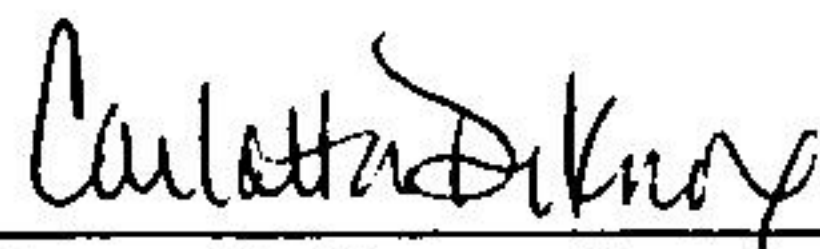
35. This Order shall be a public record in the custody of the Board.

ACCEPTED AND AGREED BY:
RESPONDENT


Yamil Jimenez CAC III-6613,
LPC 4846

ACCEPTED AND ORDERED BY:
For The Director of Registrations,

Addiction Counselor Certification and Licensure
Program & Colorado Board of Licensed
Professional Counselors


Carlotta D. Knox, Program Director

Effective Date: This 24th day of

June, 2009.